

		Arellano also failed to show entry of judgment is proper under <i>Rooney v. Vermont Investment Corp.</i> (1973) 10 Cal.3d 351. <i>Rooney</i> involved a written stipulation for settlement reached <u>during a pending lawsuit</u>. (See <i>Rooney</i>, supra, 10 Cal.3d at 356 and fn 1.) Here, the settlement agreement was reached before suit was filed. The facts in <i>Rooney</i> are thus distinguishable from those in the instant matter. Arellano fails to show how, under these circumstances, judgment is properly entered pursuant to the holding in <i>Rooney</i>. Because the motion is properly denied on the foregoing grounds, the court does not reach the parties' remaining arguments pertaining to the validity of the amendment and judgment amount sought, or prevention of performance. Case management conference remains on calendar. Counsel for Cross-Defendants shall give notice.
309	<i>Complete Water and Fire Restoration, LLC vs. Long</i>	The motion of defendant James Long moves for an order setting aside the default and any default judgment against him is DENIED. Defendant James Long moves under Code Civ. Proc. §§ 473(b) and 473.5 for an order setting aside the default and any default judgment against him. Plaintiff Complete Water and Fire Restoration, LLC, dba Service Master Recovery by CWFR opposes the motion. Plaintiff's evidence indicates that defendant was properly served with the summons and complaint on January 9, 2026. Defendant fails to carry his burden to demonstrate service was ineffective or did not occur. Defendant also contends that the default should be set aside under Code Civ. Proc. § 473.5.

		Subdivision (a) of section 473.5 provides in part that “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” Subdivision (c) provides that the Court may grant the motion and “set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action” if it finds that the motion was made within the time period specified in the section “and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect.” Here, notwithstanding defendant’s contention that he was not properly served with the summons, given the statements by Mr. Ostergar in his declaration that he discussed the case with defendant on January 9, 2026, which was the day of service, defendant’s argument that he did not have actual notice of the action in time to defend the action rings hollow. Case management conference remains on calendar. The clerk shall give notice.
313	<i>Shea vs. Tesla, Inc.</i>	Defendant Tesla, Inc.’s (Defendant) unopposed motion to compel arbitration of the claims of plaintiff Michael A. Shea (Plaintiff) is GRANTED. Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452(d).) This matter is stayed pending completion of arbitration.